

Law **HOMOSEXUALITY**

**MAYANK SHARMA, 28 &
RAJEEV CHANDRAN, 25
BANGALORE**

The verdict against Section 377 has them understandably elated. Mayank Sharma, an entrepreneur, and Rajeev Chandran, a software consultant, have been together since 2004. They go on annual holidays, meet for coffee in between busy workdays and plan a future together. But both still continue to struggle with parents and the immediate family. "My ideology of a partner became clear and I was convinced about my sexuality," says Chandran who had an unhappy marriage that lasted for six months. The couple feels that the verdict is the first step towards a more equal society free of prejudices. "But there are many things that still need to change," they say.



SUVASHIS MULLICK



to be given male children."

The sentiment is echoed across the nation; this joy is tempered with caution. Especially for those who have devoted their life to the cause. Like 63-year-old Ashok Row Kavi, one of the first gay men in India to come out of the closet. He argues that the marginalised sections of the LGBT community are being victimised not because of the Section 377 of the IPC but under munic-

ipal acts such as the Goonda Act and Public Order Act. According to Alfred Kinsey's seminal study in the 1950s, homosexuality is prevalent in 10 per cent of sexually active males. Kavi says that would mean there are at least 30 lakh gay men in India. It could be more. Fifty-five-year-old Delhi-based photographer, Sunil Gupta, who has been a witness to the Delhi gay scene for the last 35 years says, "Many gay men

were forced to marry and lead the life of a heterosexual. But they have secretly kept their gay relationship alive by staying in proximity to their partners as neighbours or colleagues."

While questions still surround the geographical spread of the judgment, 23-year-old lovers from Kolkata, Pinaki Ghosh and Jayanta Roy, are already dreaming of the day they can get married. They can't still live together

THE BODY POLITICS

The political class has dragged its feet for far too long. Now it may well have to step in.

ON the eve of the Delhi High Court verdict, the prime minister had asked Law Minister M. Veerappa Moily, Home Minister P. Chidambaram and Health Minister Ghulam Nabi Azad to formulate a government view on the contentious Section 377 of the IPC. But the

judgment came before they could meet. Predictably, the Government is yet to formulate its response. While Moily seems to be in favour of decriminalising homosexuality, Azad wants a "broad consensus in Parliament" and Chidambaram remains non-committal. The two

major national parties are shuffling uncomfortably at the verdict. Congress's Manish Tewari claimed that "the party has no view on it as it is a purely legal question" while BJP's Ravi Shankar Prasad wanted to "study the judgment before commenting". But both

